

23CV05084 Maria Teresa Alcantara, CPA v Ensign Services Inc et al

County: santa-barbara

Division: Civil Law & Motion

Department: 5 SB-Anacapa

Hearing date: 2026-07-13

Motion: Motion to Compel; Motion to Seal

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Tentative Ruling: Maria Teresa Alcantara, CPA v Ensign Services Inc et al

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Hearing Date / Time

Mon, 07/13/2026 - 10:00

Nature of Proceedings

Motion to Compel; Motion to Seal

Tentative Ruling

The motions to compel further responses to discovery, previously set for hearing on this calendar, have been continued by stipulation and order to August 17, 2026. There remains on this calendar, and not subject to the parties' stipulation, the application of plaintiff Maria Teresa Alcantara to file under seal exhibit M to the declaration of David S. Secrest in support of plaintiff's motion to compel further responses to requests for production of documents, which exhibit M was lodged with the court provisionally under seal on April 21, 2026. The application was made solely because the exhibit M documents were identified by defendants as confidential. The application specifically asserts that the moving party does not claim these documents are confidential (Secrest decl., ¶ 7.) There is no joinder or other response made in support of the application by defendants. Although not subject to the strict requirements of California Rules of Court, rules 2.550 and 2.551 because the exhibit M documents were lodged in connection with a discovery motion (rule 2.550(a)(3)), there still needs to be some factual showing to justify sealing papers filed with the court. (See NBC Subsidiary (KNBC-TV), Inc. v. Superior Court (1999) 20 Cal.4th 1178, 1212.) The only papers filed disclaim confidentiality. The motion to seal will therefore be denied.

Judges

Judge Colleen Sterne

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